

Aman Singh & Anr vs Union Territory Of J & K & Ors on 31 March, 2022

Sr. No.

HIGH COURT OF JAMMU & KASHMIR AND LADAKH
AT JAMMU

Bail App No. 402/2021

Reserved on: 15.03.2022
Pronounced on: 31.03.2022

Aman Singh & Anr.

.....Petitioner(s)

Through :- Mr. Anil Khajuria, Advocate

v/s

Union Territory of J & K & Ors.

.....Respondent(s)

Through :- Mr. Dewakar Sharma, Dy AG for 1&2
Mr. Tarun Sharma, Advocate for R-3

CORAM: HON'BLE MR. JUSTICE M.A. CHOWDHARY, JUDGE

ORDER

31.03.2022

1. Petitioners through the medium of this bail application under Section 438 of the Code of Criminal Procedure seeks to be admitted to bail in anticipation of their arrest, in a case arising out of FIR No. 0092/2021 dated 06.12.2021 registered at Police Station Bani for the commission of offences punishable under Sections 342, 366, 376 and 109 IPC.

2. The factual matrix of the case as pleaded is that petitioner No.1 aged about 18 years is a student and pursuing his B.Sc. (Hon) in Computer Sciences from Shri Guru Govind Singh College of Commerce, in Delhi University; that after his admission, he had been attending his classes through virtual mode; that during the interregnum, petitioner No.1 was quite active in social media also and was contacted by the daughter of respondent No.3/prosecutrix, had became friend and they had met on some occasions at Bani; that they were only friends and there was no love affair or any other relation interse as the petitioner No.1 being minor was younger to prosecutrix when he came in contact with her.

3. It was claimed that on 22.11.2021 when petitioner No.1 had to reach his friend at Mahanpur for appearing in examination through virtual mode, the prosecutrix was boarding the same bus from Bani and she requested him to accompany her to Kathua as she had to get some agreement and affidavits attested and for that purpose, she requires some witness along with her to some Notary in District Court Kathua; that she requested petitioner No.1, to sign some papers which he signed without being even informed about the contents of the same, even he being innocent had no knowledge about the affidavits/agreement. However, immediately after the attestation of those documents, the prosecutrix had started claiming her to be the wife of petitioner No.1 and had threatened him that in case he did not follow her instructions, she shall implicate him in a false and frivolous case; that he was wrongfully restrained by her for two days. Thereafter he escaped from her company. After collecting the so called marriage agreement, he preferred a civil suit in the Court of learned Munsiff, Kathua for declaration declaring the said agreement dated 23.11.2021 null and void, illegal and inoperative; that the Trial Court upon presentation of the said suit, issued interim directions on 01.12.2021, restraining the prosecutrix from claiming herself to be the wife of petitioner No.1.

4. Respondent No.3 and the prosecutrix after getting information about the aforesaid suit, in connivance with one of their relatives who was posted at Police Station Bani, have lodged a false and frivolous FIR against the petitioners for the commission of offences punishable under Sections 342, 366, 376 and 109 IPC; that allegations leveled in the FIR do not constitute any offence against petitioner No.2 as no specific role is assigned to him by the complainant except for a bald and vague allegation that he had acted in connivance with petitioner No.2, whereas it is nowhere stated that petitioner No.2 had ever met the daughter of respondent No.3 or had otherwise remained present at any point of time where alleged marriage papers were prepared; that the FIR on the face of it is articulated in a manner to falsely implicate petitioner No.1, moreover, petitioner No.2 is implicated only because of the reason that he is the father of petitioner No.1. It is prayed that the petitioners be released on bail in the event of their arrest.

5. Respondent Nos. 1 and 2 filed objections/status report to this petition praying inter alia that present petition under Section 482 Cr.P.C is not maintainable as petitioners are involved in the commission of very heinous offences which can only be adjudicated by leading evidence in the case and requires a full dress trial by the Trial Court. He has further stated that the scope into interference by the Court in the matter of investigation is very bleak and the powers of Section 482 Cr. P.C are to be exercised very sparingly as held by Hon'ble the Supreme Court in "Neeharika Infrastructure Pvt Limited vs State of Maharashtra, reported in 2021 SCC 315", thus the present petition deserves to be dismissed.

6. Respondent No. 3 also filed objections wherein he has stated that petitioner No.1 committed rape upon the prosecutrix in which petitioner No.2 was actively assisted and presently the prosecutrix is pregnant for three months; that petitioner No.2 is also forcing the prosecutrix to abort the child of petitioner No.1; that committing heinous offence, raping a women without her consent and then pressurising her for abortion is a crime which is against the society, therefore, the present petition deserves to be dismissed.

7. Heard learned counsel for both the sides and perused the case file.

8. Learned counsel for the petitioners argued that petitioner No.1 and the prosecutrix were only friends and there was no love affair between them. He has further argued that petitioner No.1 had just attained the age of 18 years in the month of March, 2021 and was not competent to marry in terms of Section 5 of the Hindu Marriage Act as section 5 (iii) clearly stipulate that the bridegroom has to complete the age of 21 years at the time of marriage and in the instant case petitioner No.1 was only 18 years old, as such, there could not have been a valid marriage. He has further argued that the prosecutrix had mislead petitioner No.1 to sign papers, which ultimately turned out to be marriage agreement and in that regard a civil suit stands already filed before the learned Munsiff, Kathua by petitioner No.1 against the prosecutrix whereby the learned Trial Court had issued injunctive directions against the prosecutrix from claiming her to be the wife of petitioner No.1, who is a student pursuing his B.Sc. (Hon). In support of arguments, learned counsel for the petitioners has relied upon the judgment of Hon'ble High Court of Himachal Pradesh in case titled "Sandeep Nirala vs State of Himachal Pardesh", reported as 2021(1) SimLC 214. It is apt to reproduce Para 10 of the judgment as under:-

"10. The sequence of events as mentioned in the FIR, reveals that the victim is silent of drawing attention of anybody through her sojourn from 12th till 23rd, i.e., for 12 days. During visiting various places and big cities, she would have got enormous opportunities to get rid of the petitioner, if she was unwilling to travel with him."

9. Mr. Dewakar Sharma, learned Dy AG assisted by Mr. Tarun Sharma, learned counsel for the complainant, ex adverso, argued that the investigation in the aforementioned FIR has been completed and all the accused persons found guilty of committing offence punishable under sections 376, 366, 342, 109 IPC. The statement of prosecutrix got recorded wherein she states that on 22.11.2021 she was going to Govt. Degree College Bani for obtaining her mark sheet of B.A and when she reached at Bani, Aman Singh S/O Bansilal R/O Chandal Tehsil Bani called her telephonically and asked her to come at Bus Stand Bani and she went to Bus Stand Bani from where Aman Singh deceived her with the conspiracy of his father Bansilal, kidnapped her and took her to Kathua and kept her in a Hotel and raped her forcibly and on the next day on the direction of his father Bansilal, Aman Singh took her signatures on marriage documents and wrongfully confined her in a hotel for 9/10 days and raped her forcibly. It is further argued that in light of the complaint and on the basis of evidence collected so far, the aforementioned offences have been proved against them; both the accused persons are evading their arrest after the commission of offence, even petitioner No.2 is not cooperating with investigating agency pursuant to the interim order passed by this Court on 15.12.2021. It is prayed that the bail application be rejected.

10. Hon'ble the Supreme Court in a case titled "Anil Kumar Yadav vs State (NCT) of Delhi" reported as (2018) 12 SCC 129 has spelt out some of the significant considerations which may be placed in the balance in deciding whether to grant bail. Para 17 of the judgment is profitable to be extracted for ready reference:-

"17. While granting bail, the relevant considerations are:- (i) nature of seriousness of the offence; (ii) character of the evidence and circumstances which are peculiar to the accused;

(iii) likelihood of the accused fleeing from justice; (iv) the impact that his release may make on the prosecution witnesses, its impact on the society; and (v) likelihood of his tampering. No doubt, this list is not exhaustive. There are no hard and fast rules regarding grant or refusal of bail, each case has to be considered on its own merits. The matter always calls for judicious exercise of discretion by the Court."

11. Petitioner No.1 is accused of having committed rape upon the prosecutrix for many days at Kathua and that his father also abetted him by forged some documents with regard to alleged marriage between petitioner No.1 and the prosecutrix. The act of petitioner No.1, has resulted into pregnancy of the prosecutrix, which is stated to be of three months now. It is also alleged that DNA and potency test of the main accused are yet to be conducted as he has not co-operated in the investigation of the case. The investigation of the case has not been completed so far and in a case of rape it will be very pre-mature to take a view in absence of accusation of the investigation; that the petitioners have been falsely implicated so as to warrant them to be admitted to bail in anticipation of arrest. The arguments of learned counsel for the petitioners that petitioner No.1 was just 18 years old and that the prosecutrix was much older to him is of no consequence at this stage of the case.

12. The accusation against one of the accused is serious to have ravished the prosecutrix sexually for many days after confining her illegally and in case the bail is granted to accused it will send a wrong signal to the society at large and shall also not enhance the course of justice in any manner, resulting into miscarriage of justice. Offence under Section 376 IPC is a heinous crime, which cannot be viewed with a leniency. Sexual assault not only causes physical injuries but leaves a scar on the most cherished dignity, honour, reputation and not the least chastity of a woman. Courts, therefore, are expected to deal with such cases with utmost sensitivity. It needs to be borne in mind that during preliminary investigation, the accused-petitioner herein has been held prima facie guilty for the commission of offence punishable under Section 376 IPC. The judgment relied upon by learned counsel for the petitioners in the instant case, is out of context. It would be only after the conclusion of trial that the opinion about guilt or otherwise of the accused-petitioners can be framed.

13. For the foregoing reasons and the observations made hereinabove, this petition for grant of bail moved by the petitioners, in anticipation of arrest, having regard to the nature of the accusation of rape, gravity of the offence, severity of the punishment and antecedents of the accused, is found bereft of any merit and substance and is liable to be rejected. Bail Petition is, thus, dismissed. Interim direction, if any, shall stand vacated.

(M.A. Chowdhary) Judge JAMMU 31.03.2022 Vijay Whether the order is speaking: Yes Whether the order is reportable: Yes